



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[HB 4136](#): unlawful entry; vulnerable adults; vagrants

KOLODIN FLOOR AMENDMENT

1. Narrows the offenses to apply only in cases of burglary and stalking.

ADDITIONAL COW
KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4136
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 15, Arizona Revised Statutes, is
3 amended by adding section 13-1510, to read:

4 13-1510. Unlawful entry in or on a residential structure in
5 which a vulnerable adult resides; sexual offense;
6 classification; definition

7 A. A PERSON COMMITS UNLAWFUL ENTRY IN OR ON A RESIDENTIAL STRUCTURE
8 IN WHICH A VULNERABLE ADULT RESIDES IF ALL OF THE FOLLOWING APPLY:

9 1. THE PERSON KNOWINGLY ENTERS OR REMAINS IN OR ON A RESIDENTIAL
10 STRUCTURE IN OR ON WHICH A VULNERABLE ADULT IS RESIDING [IN VIOLATION OF
11 SECTION 13-1507, 13-1508 OR 13-2923].

12 2. THE OWNER OF THE RESIDENCE OR CAREGIVER OF THE VULNERABLE ADULT
13 HAS NOT GIVEN THE PERSON PERMISSION TO ENTER OR REMAIN IN OR ON THE
14 RESIDENTIAL STRUCTURE.

15 3. THE OWNER OF THE RESIDENCE OR CAREGIVER OF THE VULNERABLE ADULT
16 REPORTS THE INCIDENT TO AUTHORITIES.

17 B. A PERSON COMMITS UNLAWFUL ENTRY IN OR ON A RESIDENTIAL STRUCTURE
18 IN WHICH A VULNERABLE ADULT RESIDES INVOLVING A SEXUAL OFFENSE IF ALL OF
19 THE FOLLOWING APPLY:

20 1. THE PERSON KNOWINGLY ENTERS OR REMAINS IN OR ON A RESIDENTIAL
21 STRUCTURE IN OR ON WHICH A VULNERABLE ADULT IS RESIDING [IN VIOLATION OF
22 SECTION 13-1507, 13-1508 OR 13-2923].

23 2. THE OWNER OF THE RESIDENCE OR CAREGIVER OF THE VULNERABLE ADULT
24 HAS NOT GIVEN THE PERSON PERMISSION TO ENTER OR REMAIN IN OR ON THE
25 RESIDENTIAL STRUCTURE.

26 3. THE OWNER OF THE RESIDENCE OR CAREGIVER OF THE VULNERABLE ADULT
27 REPORTS THE INCIDENT TO AUTHORITIES.

1 4. THE PERSON COMMITS ANY OF THE FOLLOWING [AGAINST THE VULNERABLE
2 ADULT WHILE IN THE RESIDENCE]:

3 (a) AN OFFENSE FOR WHICH THERE HAS BEEN A FINDING OF SEXUAL
4 MOTIVATION PURSUANT TO SECTION 13-118.

5 (b) AN OFFENSE UNDER SECTION 13-1307 OR 13-3019.

6 (c) AN OFFENSE UNDER CHAPTER 14 OR 32 OF THIS TITLE.

7 C. A VIOLATION OF SUBSECTION B OF THIS SECTION IS A CLASS 3 FELONY.
8 A VIOLATION OF SUBSECTION A OF THIS SECTION IS A CLASS 4 FELONY.

9 D. FOR THE PURPOSES OF THIS SECTION "VULNERABLE ADULT" HAS THE SAME
10 MEANING PRESCRIBED IN SECTION 46-451.

11 Sec. 2. Section 13-3821, Arizona Revised Statutes, is amended to
12 read:

13 13-3821. Persons required to register; procedure;
14 identification card; assessment; definitions

15 A. A person who has been convicted of or adjudicated guilty except
16 insane for a violation or attempted violation of any of the following
17 offenses or who has been convicted of or adjudicated guilty except insane
18 or not guilty by reason of insanity for an offense committed in another
19 jurisdiction that if committed in this state would be a violation or
20 attempted violation of any of the following offenses or an offense that
21 was in effect before September 1, 1978 and that, if committed on or after
22 September 1, 1978, has the same elements of an offense listed in this
23 section or who is required to register by the convicting or adjudicating
24 jurisdiction, within ten days after the conviction or adjudication or
25 within seventy-two hours, excluding weekends and legal holidays, after
26 entering and remaining for at least seventy-two hours in any county of
27 this state, shall register with the sheriff of that county:

28 1. Unlawful imprisonment pursuant to section 13-1303 if the victim
29 is under eighteen years of age and the unlawful imprisonment was not
30 committed by the child's parent.

31 2. Kidnapping pursuant to section 13-1304 if the victim is under
32 eighteen years of age and the kidnapping was not committed by the child's
33 parent.

34 3. Sexual abuse pursuant to section 13-1404 if the victim is under
35 eighteen years of age.

36 4. Sexual conduct with a minor pursuant to section 13-1405.

37 5. Sexual assault pursuant to section 13-1406.

38 6. Sexual assault of a spouse if the offense was committed before
39 August 12, 2005.

40 7. Molestation of a child pursuant to section 13-1410.

41 8. Continuous sexual abuse of a child pursuant to section 13-1417.

42 9. Taking a child for the purpose of prostitution pursuant to
43 section 13-3206.

44 10. Child prostitution pursuant to section 13-3212, subsection A or
45 subsection B, paragraph 1 or 2 committed before August 9, 2017.

46 11. Child sex trafficking pursuant to section 13-3212, subsection A
47 or subsection B, paragraph 1 or 2 committed on or after August 9, 2017.

- 1 12. Commercial sexual exploitation of a minor pursuant to section
2 13-3552.
- 3 13. Sexual exploitation of a minor pursuant to section 13-3553.
- 4 14. Luring a minor for sexual exploitation pursuant to section
5 13-3554.
- 6 15. A second or subsequent violation of indecent exposure to a
7 person who is under fifteen years of age pursuant to section 13-1402.
- 8 16. A second or subsequent violation of public sexual indecency to
9 a minor who is under fifteen years of age pursuant to section 13-1403,
10 subsection B.
- 11 17. A third or subsequent violation of indecent exposure pursuant
12 to section 13-1402.
- 13 18. A third or subsequent violation of public sexual indecency
14 pursuant to section 13-1403.
- 15 19. A violation of section 13-3822 or 13-3824.
- 16 20. Unlawful age misrepresentation.
- 17 21. Aggravated luring a minor for sexual exploitation pursuant to
18 section 13-3560.
- 19 22. Sexual extortion pursuant to section 13-1428 if the victim is
20 under fifteen years of age.
- 21 23. UNLAWFUL ENTRY IN OR ON A RESIDENTIAL STRUCTURE IN WHICH A
22 VULNERABLE ADULT RESIDES INVOLVING A SEXUAL OFFENSE PURSUANT TO SECTION
23 13-1510, SUBSECTION B.
- 24 B. Before the person is released from confinement the state
25 department of corrections in conjunction with the department of public
26 safety and each county sheriff shall complete the registration of any
27 person who was convicted of or adjudicated guilty except insane for a
28 violation of any offense listed under subsection A of this section.
29 Within three days after the person's release from confinement, the state
30 department of corrections shall forward the registered person's records to
31 the department of public safety and to the sheriff of the county in which
32 the registered person intends to reside. Registration pursuant to this
33 subsection shall be consistent with subsection E of this section.
- 34 C. Notwithstanding subsection A of this section, the judge who
35 sentences a defendant for any violation of chapter 14 or 35.1 of this
36 title or for an offense for which there was a finding of sexual motivation
37 pursuant to section 13-118 may require the person who committed the
38 offense to register pursuant to this section.
- 39 D. The court may require a person who has been adjudicated
40 delinquent for an act that would constitute an offense specified in
41 subsection A or C of this section to register pursuant to this section.
42 Any duty to register under this subsection terminates when the person
43 reaches twenty-five years of age.
- 44 E. A person who has been convicted, adjudicated guilty except
45 insane or adjudicated delinquent and who is required to register in the
46 convicting or adjudicating state for an act that would constitute an
47 offense specified in subsection A or C of this section and who is not a

1 resident of this state shall be required to register pursuant to this
2 section if the person is either:

3 1. Employed full-time or part-time in this state, with or without
4 compensation, for more than fourteen consecutive days or for an aggregate
5 period of more than thirty days in a calendar year.

6 2. Enrolled as a full-time or part-time student in any school in
7 this state for more than fourteen consecutive days or for an aggregate
8 period of more than thirty days in a calendar year. For the purposes of
9 this paragraph, "school" means an educational institution of any
10 description, public or private, wherever located in this state.

11 F. Any duty to register under subsection D or E of this section for
12 a juvenile adjudication terminates when the person reaches twenty-five
13 years of age.

14 G. The court may order the termination of any duty to register
15 under this section on successful completion of probation if the person was
16 under eighteen years of age when the offense for which the person was
17 convicted or adjudicated guilty except insane was committed.

18 H. The court may order the suspension or termination of any duty to
19 register under this section after a hearing held pursuant to section
20 13-923.

21 I. At the time of registering, the person shall sign or affix an
22 electronic fingerprint to a statement giving such information as required
23 by the director of the department of public safety. The sheriff shall
24 fingerprint and photograph the person and within three days thereafter
25 shall send copies of the statement, fingerprints and photographs to the
26 department of public safety and the chief of police, if any, of the place
27 where the person resides. The information that is required by this
28 subsection shall include all of the following:

29 1. All names by which the person is known.

30 2. Any required online identifier.

31 3. The name of any website or internet communication service where
32 the identifier is being used.

33 4. If the person owns, possesses or regularly operates a motor
34 vehicle that is required to be registered under title 28, chapter 7, the
35 make, model, year of manufacture, color, vehicle identification number,
36 state of registration and license plate number of the motor vehicle.

37 5. If the person has legal custody of a child who is enrolled in
38 school, the child's name and enrollment status.

39 6. The physical location of the person's residence, the person's
40 address and whether the person's residence is permanent or temporary,
41 except that:

42 (a) If the person has a place of residence that is different from
43 the person's address, the person shall provide the person's address, the
44 physical location of the person's residence and the name of the owner of
45 the residence if the residence is privately owned and not offered for rent
46 or lease.

1 (b) If the person receives mail at a post office box or other
2 place, the person shall provide the location and number of the post office
3 box or other place.

4 (c) If the person has more than one residence, the person shall
5 register in person and in writing every residence and address not less
6 than every ninety days with the sheriff in whose jurisdiction the person
7 is physically present.

8 (d) If the person does not have an address or a permanent place of
9 residence, the person shall provide a description and physical location of
10 any temporary residence and shall register as a transient not less than
11 every ninety days with the sheriff in whose jurisdiction the transient is
12 physically present.

13 J. On the person's initial registration and every year after the
14 person's initial registration during the month of the person's birthdate,
15 the person shall report in person to the sheriff of the county in which
16 the person is registered and confirm in writing all information required
17 by this section, any required online identifier and the name of any
18 website or internet communication service where the identifier is being
19 used and the person shall obtain a new nonoperating identification license
20 or a driver license from the motor vehicle division in the department of
21 transportation and shall carry a valid nonoperating identification license
22 or a driver license. Notwithstanding sections 28-3165 and 28-3171, the
23 license is valid for one year from the date of issuance, and the person
24 shall submit to the department of transportation proof of the person's
25 address and place of residence. The motor vehicle division shall annually
26 update the person's address and photograph and shall make a copy of the
27 photograph available to the department of public safety or to any law
28 enforcement agency. The motor vehicle division shall provide to the
29 department of public safety daily address updates for persons required to
30 register pursuant to this section.

31 K. Except as provided in subsection E or L of this section, the
32 clerk of the superior court in the county in which a person has been
33 convicted of or adjudicated guilty except insane for a violation of any
34 offense listed under subsection A of this section or has been ordered to
35 register pursuant to subsection C or D of this section shall notify the
36 sheriff in that county of the conviction or adjudication within ten days
37 after entry of the judgment.

38 L. Within ten days after entry of judgment, a court not of record
39 shall notify the arresting law enforcement agency of an offender's
40 conviction of or adjudication of guilty except insane for a violation of
41 section 13-1402. Within ten days after receiving this information, the
42 law enforcement agency shall determine if the offender is required to
43 register pursuant to this section. If the law enforcement agency
44 determines that the offender is required to register, the law enforcement
45 agency shall provide the information required by section 13-3825 to the
46 department of public safety and shall make community notification as
47 required by law.

1 M. A person who is required to register pursuant to this section
2 because of a conviction or adjudication of guilty except insane for the
3 unlawful imprisonment of a minor or the kidnapping of a minor is required
4 to register, absent additional or subsequent convictions or adjudications,
5 for a period of ten years from the date that the person is released from
6 prison, jail, probation, community supervision or parole and the person
7 has fulfilled all restitution obligations. Notwithstanding this
8 subsection, a person who has a prior conviction or adjudication of guilty
9 except insane for an offense for which registration is required pursuant
10 to this section is required to register for life.

11 N. A person who is required to register pursuant to this section
12 and who is a student at a public or private institution of postsecondary
13 education or who is employed, with or without compensation, at a public or
14 private institution of postsecondary education or who carries on a
15 vocation at a public or private institution of postsecondary education
16 shall notify the county sheriff having jurisdiction of the institution of
17 postsecondary education. The person who is required to register pursuant
18 to this section shall also notify the sheriff of each change in enrollment
19 or employment status at the institution.

20 O. At the time of registering, the sheriff shall secure a
21 sufficient sample of blood or other bodily substances for deoxyribonucleic
22 acid testing and extraction from a person who has been convicted of or
23 adjudicated guilty except insane for an offense committed in another
24 jurisdiction that if committed in this state would be a violation or
25 attempted violation of any of the offenses listed in subsection A of this
26 section or an offense that was in effect before September 1, 1978 and
27 that, if committed on or after September 1, 1978, has the same elements of
28 an offense listed in subsection A of this section or who is required to
29 register by the convicting or adjudicating jurisdiction. The sheriff
30 shall transmit the sample to the department of public safety.

31 P. Any person who is required to register under subsection A of
32 this section shall register the person's required online identifier and
33 the name of any website or internet communication service where the
34 identifier is being used or is intended to be used with the sheriff from
35 and after December 31, 2007, regardless of whether the person was required
36 to register an identifier at the time of the person's initial registration
37 under this section.

38 Q. On conviction of or adjudication of guilty except insane for any
39 offense for which a person is required to register pursuant to this
40 section, in addition to any other penalty prescribed by law, the court
41 shall order the person to pay an additional assessment of \$250. This
42 assessment is not subject to any surcharge. The court shall transmit the
43 monies received pursuant to this section to the county treasurer. The
44 county treasurer shall transmit the monies received to the state
45 treasurer. The state treasurer shall deposit the monies received in the
46 state general fund. Notwithstanding any other law, the court shall not
47 waive the assessment imposed pursuant to this section.

1 R. A person who is required to register pursuant to this section
2 shall verify the person's residence and address if requested by the
3 department of public safety pursuant to section 13-3827, subsection G.
4 S. For the purposes of this section:
5 1. "Address" means all locations at which the person receives mail.
6 2. "Legal custody" means the right to have physical possession of a
7 child.
8 3. "Required online identifier" means any electronic email address
9 information or instant message, chat, social networking or other similar
10 internet communication name but does not include a social security number,
11 date of birth or pin number.
12 4. "Residence" means:
13 (a) The person's dwelling place, whether permanent or temporary.
14 (b) If the person is transient and does not spend at least three
15 nights in any location or place within a thirty-day period, the geographic
16 areas of the county where the person spends the nights.
17 5. "School" means a public or nonpublic kindergarten program,
18 common school or high school.
19 6. "Transient" means a person who does not have a single and
20 permanent dwelling place.

21 Enroll and engross to conform
22 Amend title to conform

ALEXANDER KOLODIN

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